

241 (1) The Lieutenant Governor in Council may make regulations,

1. prescribing circumstances under which one or more rental units that form part of a residential complex, rather than the entire residential complex, are care homes for the purposes of the definition of “care home” in subsection 2 (1);
2. prescribing services that are to be included or not included in the definition of “care services” in subsection 2 (1);
3. prescribing charges not to be included in the definition of “municipal taxes and charges” in subsection 2 (1);
4. prescribing persons that are to be included or are not to be included in the definition of “tenant” in subsection 2 (1) and exempting any such persons from any provision of this Act specified in the regulation;
5. prescribing, for the purposes of the definition of “vital service” in subsection 2 (1), the part of each year during which heat is a vital service;
6. prescribing classes of accommodation for the purposes of clause 5 (n);
- 6.1 prescribing requirements that a dispute resolution process must meet for the purposes of subparagraph 3 iii of subsection 5.1 (3);
- 6.2 prescribing requirements that an agreement must meet for the purposes of paragraph 5 of subsection 5.1 (3) or clause 5.1 (4) (b);
7. prescribing federal, provincial or municipal programs for the purpose of paragraph 3 of subsection 7 (1);
8. providing that specified provisions of this Act apply with respect to any specified housing project, housing program, rental unit, residential complex, member unit of a non-profit housing co-operative or other residential accommodation or any class of them;
9. exempting any housing project, housing program, rental unit, residential complex as defined under Part I or V.1, member unit of a non-profit housing co-operative or other residential accommodation or any class of them from any provision of this Act;
10. prescribing grounds of an application for the purposes of clause 9 (1) (b);
11. respecting the rules for making findings for the purposes of subsection 9 (2);

12. prescribing for the purposes of section 22, paragraph 3 of subsection 29 (1) and subsection 31 (1),

- i. standards and criteria to be applied by the Board in determining if a landlord, superintendent or agent of a landlord has substantially interfered with the reasonable enjoyment of a rental unit or residential complex in carrying out maintenance, repairs or capital improvements to the unit or complex, and
- ii. criteria to be applied by the Board in determining whether to order an abatement of rent under subsection 31 (1) when a landlord, superintendent or agent of a landlord is found to have substantially interfered with the reasonable enjoyment of a rental unit or residential complex in carrying out maintenance, repairs or capital improvements to the unit or complex and rules for calculating the amount of the abatement;

Note: On a day to be named by proclamation of the Lieutenant Governor, subsection 241 (1) of the Act is amended by adding the following paragraph: (See: 2023, c. 10, Sched. 7, s. 10)

12.1 for the purposes of section 36.1,

- i. prescribing circumstances for the purposes of subsection 36.1 (2), and
- ii. governing the installation, use and maintenance of window or portable air conditioners for the purposes of subsection section 36.1, including prescribing additional conditions for the purposes of subsection 36.1 (3);

13. prescribing the hours during which a landlord is required to make an evicted tenant's property available to be retrieved under subsection 41 (3);

13.0.1 prescribing acts or omissions for the purposes of clause 47.3 (1) (f), and for greater certainty,

- i. an act or omission that causes emotional or financial harm or the fear of such harm to a person or another person may be prescribed even if it does not cause bodily harm to a person or does not cause a person to fear for his or her own safety or someone else's safety,
- ii. an act or omission may be prescribed with or without a reference to the

person who commits the act or omission, and

iii. a prescribed act or omission may include a threat or an attempt to commit the act or omission;

Note: On a day to be named by order of the Lieutenant Governor in Council, subsection 241 (1) of the Act is amended by adding the following paragraph: (See: 2025, c. 14, Sched. 12, s. 12 (1))

13.0.2 prescribing rules and guidelines for determining what constitutes a persistent failure to pay rent on the date it becomes due and payable for the purposes of paragraph 1 of subsection 58 (1.1);

Note: On a day to be named by order of the Lieutenant Governor in Council, subsection 241 (1) of the Act is amended by adding the following paragraph: (See: 2025, c. 14, Sched. 12, s. 12 (2))

13.0.3 prescribing circumstances, conditions or tests for the purposes of clause 77 (8) (b);

Note: On a day to be named by order of the Lieutenant Governor in Council, subsection 241 (1) of the Act is amended by adding the following paragraph: (See: 2025, c. 14, Sched. 12, s. 12 (3))

13.0.4 for the purposes of subsection 82 (2),

- i. prescribing the circumstances in which paragraph 4 does not apply,
- ii. prescribing the circumstances in which the tenant is permitted or required to provide payments described in paragraph 4 into the Board, including providing that the Board may make an order permitting or requiring the tenant to make such payments into the Board,
- iii. prescribing additional amounts for the purposes of subparagraph 4 ii, and
- iv. prescribing timelines for the purposes of paragraph 5.

Note: On a day to be named by order of the Lieutenant Governor in Council, subsection 241 (1) of the Act is amended by adding the following paragraph: (See: 2025, c. 14, Sched. 12, s. 12 (4))

13.0.5 prescribing limitations or conditions for the purposes of clause 83 (1) (b), including setting out factors that the Board must consider in determining

whether to exercise its power under that clause;

13.1 prescribing persons that are to be included or are not to be included in the definition of “member” in section 94.1 and exempting any such persons from any provision of this Act specified in the regulation;

Note: On a day to be named by order of the Lieutenant Governor in Council, subsection 241 (1) of the Act is amended by adding the following paragraph: (See: 2025, c. 14, Sched. 12, s. 12 (5))

13.2 prescribing rules and guidelines for determining what constitutes a persistent failure to pay the regular monthly housing charges on the date they became due and payable for the purposes of paragraph 1 of subsection 94.2 (1);

Note: On a day to be named by order of the Lieutenant Governor in Council, subsection 241 (1) of the Act is amended by adding the following paragraph: (See: 2025, c. 14, Sched. 12, s. 12 (6))

13.3 prescribing limitations or conditions for the purposes of clause 94.12 (1) (b), including setting out factors that the Board must consider in determining whether to exercise its power under that clause;

14. prescribing conditions applicable to discounts referred to in subsection 111 (2) or paragraph 1 of subsection 111 (2.1);

15. prescribing discounts for the purpose of paragraph 2 of subsection 111 (2.1);

16. prescribing rules for the purpose of subsection 111 (3) for calculating the lawful rent which may be charged where a landlord provides a tenant with a discount in rent at the beginning of, or during, a tenancy, and prescribing different rules for different types of discounts;

17. prescribing rules for the purpose of subsection 111 (4) for the calculation of lawful rent where the rent a landlord charges for the first rental period of a tenancy is greater than the rent the landlord charges for any subsequent rental period;

18. prescribing the circumstances under which lawful rent for the purposes of section 112 will be other than that provided for in section 112 and providing the lawful rent under those circumstances;

19. prescribing information to be included in a notice under clause 114 (3) (e);
20. prescribing information to be filed and the time in which it is to be filed for the purposes of subsection 115 (4);
21. respecting rules for increasing or decreasing rent charged for the purposes of sections 123 and 125;
22. prescribing services, facilities, privileges, accommodations and things for the purposes of paragraph 2 of subsection 123 (1);
23. defining or describing the method for determining what constitutes “extraordinary increase” for the purpose of section 126;
- 23.1 prescribing information to be included in a summary for the purposes of paragraph 4 of subsection 126 (3.2);
24. prescribing rules governing making information available under subsection 126 (4);
- 24.1 prescribing circumstances under which a capital expenditure is not an eligible capital expenditure under subsection 126 (7);
25. prescribing the rules for making findings for the purposes of subsection 126 (10);
26. prescribing rules governing the time period to be specified in an order under clause 126 (10) (b);
27. prescribing rules for the purpose of clause 126 (11) (b);
28. prescribing rules for the purposes of section 127;
29. prescribing rules for the purposes of subsection 128 (2);
30. prescribing a percentage, a period and rules for the purposes of subsection 128 (3);
31. prescribing rules governing the determination of the date to be specified in an order under clause 129 (b);
32. prescribing rules governing the determination of the percentage by which rent is required to be reduced under subclause 129 (c) (ii);
33. prescribing the rules for making findings for the purposes of subsection 130 (3);

- 34. prescribing percentages and rules for the purposes of subsection 131 (1);
- 35. prescribing rules for the purposes of subsection 131 (2);
- 36. prescribing a number of rental units, a period and methods of service for the purposes of subsection 131 (3);
- 37. prescribing circumstances for the purposes of subsection 132 (1);
- 38. prescribing a period of time for the purposes of subsection 132 (2);
- 39. prescribing rules for the purposes of subsection 132 (3);
- 40. prescribing the rules for making findings for the purposes of subsection 133 (2) and for determining the effective date for an order under subsection 133 (3);
- 41. exempting specified payments from the operation of subsection 134 (1) or (3);
- 42. prescribing rules governing the provision of notice for the purposes of clause 137 (2) (c);
- 43. prescribing rules governing the provision of a notice for the purposes of clause 137 (3) (b);
- 44. prescribing the circumstances and the rules governing the reduction of rent for the purposes of clause 137 (3) (c);
- 45. prescribing the information to be provided to the tenant for the purposes of subsection 137 (4);
- 45.1 prescribing the circumstances and conditions to be met for the purposes of subsection 137 (5);
- 45.2 prescribing the time, the circumstances and the rules for the purposes of subsection 137 (6);
- 45.3-47 REPEALED: 2020, c. 16, Sched. 4, s. 38 (1).
- 48. prescribing the rules and the requirements for the purposes of clauses 137 (9) (a), (b) and (c);
- 48.1 prescribing other circumstances for the purposes of subsection 137 (10);
- 49. prescribing circumstances in which a tenant may apply to the Board under subsection 137 (11);

49.1 prescribing the circumstances under which subsection 137 (15) would not apply;

50. prescribing rules governing charging tenants a portion of the cost of a utility for the purposes of subsection 138 (1);

51. prescribing rules governing the provision of a notice for the purposes of clause 138 (1) (a);

52. prescribing rules governing the reduction of rent for the purposes of clause 138 (1) (b);

52.1 prescribing a period for the purposes of paragraph 2 of subsection 138 (4);

53. prescribing information to be provided to a prospective tenant for the purposes of paragraph 4 of subsection 138 (4);

54. prescribing the rules and the requirements for the purposes of clauses 138 (5) (a), (b) and (c);

55. prescribing circumstances in which a tenant may apply to the Board under subsection 138 (6);

56. prescribing the information that shall be contained in an information package for the purposes of section 140;

57. prescribing a period for the purpose of clause 144 (1) (b);

58. prescribing an amount for the purposes of paragraph 2 of subsection 164 (2);

59. prescribing an amount for the purposes of section 165;

Note: On a day to be named by proclamation of the Lieutenant Governor, subsection 241 (1) of the Act is amended by adding the following paragraphs: (See: 2020, c. 16, Sched. 4, s. 38 (2))

59.1 prescribing services and facilities and privileges, accommodations and things for the purposes of subsection 165.1 (1);

59.2 for each of the prescribed services and facilities and prescribed privileges, accommodations and things, prescribing the applicable date and the circumstances governing the application of subsection 165.1 (2);

59.3 prescribing the rules governing the reduction of rent for the purposes of subsection 165.1 (3);

60. prescribing services and things for the purposes of section 167;

Note: On a day to be named by proclamation of the Lieutenant Governor, paragraph 60 of subsection 241 (1) of the Act is repealed and the following substituted: (See: 2020, c. 16, Sched. 4, s. 38 (3))

60. prescribing rules governing the determination of the number of years under clause 167 (1) (a);

61. prescribing rules governing the determination of the percentage increase under clause 167 (1) (b);

61.1 prescribing services and things for the purposes of subsection 167 (2);

61. REPEALED: 2013, c. 3, s. 56 (4).

62. prescribing information to be filed with an application to the Board for the purposes of subsection 185 (1);

63. for the purposes of paragraph 2 of subsection 188 (1), prescribing circumstances, parties, documents and information;

64. REPEALED: 2011, c. 6, Sched. 3, s. 3 (1).

65. prescribing time requirements that cannot be extended or shortened for the purposes of subsection 190 (2);

66. restricting the circumstances in which the Board may, under section 195, require a person to make a payment into the Board;

67. fixing the rate of interest to be paid on money paid to the Board in trust;

68. prescribing forms of housing assistance for the purposes of clause 203 (b);

68.1 prescribing restrictions for the purposes of subsection 206.1 (2);

69. prescribing an amount for the purposes of subsection 207 (4);

70. governing electronic documents for the purposes of section 213, including specifying the types of documents that may be dealt with electronically for the purposes of that section, regulating the use of electronic signatures in such documents and providing for the creating, filing, providing, issuing, sending, receiving, storing, transferring and retaining of such documents;

71. prescribing an amount for the purposes of subsection 214 (1);

- 72. prescribing maintenance standards for the purposes of section 224;
- 73. prescribing circumstances for the purposes of clause 224 (1) (b);
- 74. REPEALED: 2016, c. 25, Sched. 5, s. 13.
- 75. making a regulation made under paragraph 25, 26, 66 or 67 applicable, with necessary modifications, to an application to which subsection 242 (6) or (7) applies, and providing that the regulation applies despite any regulations made under the *Tenant Protection Act, 1997*;
- 76. defining “serious” as it is used in any provision of this Act and defining it differently for different provisions;
- 77. defining any word or expression used in this Act that has not already been expressly defined in this Act;
- 78. prescribing any matter required or permitted by this Act to be prescribed. 2006, c. 17, s. 241 (1); 2009, c. 33, Sched. 21, s. 11 (10); 2010, c. 8, s. 39 (3); 2011, c. 6, Sched. 3, s. 3; 2013, c. 3, s. 56; 2016, c. 2, Sched. 6, s. 4; 2016, c. 25, Sched. 5, s. 13; 2017, c. 13, s. 30 (1-4); 2020, c. 16, Sched. 4, s. 38 (1).

Same

(2) A regulation made under subsection (1) may be general or particular in its application. 2006, c. 17, s. 241 (2).

Regulation under subs. (1), par. 24.1

(3) A regulation made under paragraph 24.1 of subsection (1) may apply with respect to a capital expenditure incurred before the day the regulation comes into force. 2017, c. 13, s. 30 (5).

▼ Section Amendments with date in force (d/m/y)

Regulations made by Minister

241.1 (1) The Minister may make regulations,

- 1. prescribing classes of tenancies for the purposes of subsection 12.1 (1);
- 2. with respect to each prescribed class of tenancies, prescribing,

- i. a date for that class for the purposes of subsection 12.1 (1),
 - ii. the form of a tenancy agreement for that class for the purposes of paragraph 1 of subsection 12.1 (1);
3. with respect to each prescribed class of tenancies, prescribing the requirements for a tenancy agreement for that class for the purposes of paragraph 2 of subsection 12.1 (1), including,
- i. providing that a tenancy agreement for that class may include additional terms but only if those terms are not inconsistent with the mandatory terms set out in the form of tenancy agreement prescribed for that class,
 - ii. providing that any additional term included in a tenancy agreement for that class that is inconsistent with the mandatory terms set out in the form of tenancy agreement prescribed for that class is void;

Note: On a day to be named by order of the Lieutenant Governor in Council, subsection 241.1 (1) of the Act is amended by adding the following paragraphs: (See: 2025, c. 14, Sched. 12, s. 13)

3.0.1 prescribing forms of notices for the purposes of subsection 43 (1);

Note: On a day to be named by proclamation of the Lieutenant Governor, subsection 241.1 (1) of the Act is amended by adding the following paragraph: (See: 2023, c. 10, Sched. 7, s. 11 (1))

3.1 prescribing qualifications and requirements for the purposes of clause 50 (3) (b);

Note: On a day to be named by proclamation of the Lieutenant Governor, subsection 241.1 (1) of the Act is amended by adding the following paragraph: (See: 2023, c. 10, Sched. 7, s. 11 (2))

3.2 prescribing a period of time for the purposes of subsection 57 (6.1), including prescribing different periods of time that apply in different circumstances;

Note: On a day to be named by order of the Lieutenant Governor in Council, subsection 241.1 (1) of the Act is amended by adding the following paragraphs: (See: 2025, c. 14, Sched. 12, s. 13)

3.3 prescribing limitations or conditions for the purposes of subsection 209